

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sruthi Venigalla	Team: Squad #13	CCRB Case #: 201409510	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 09/13/2014 9:45 PM	Location of Incident: New York Avenue between Pacific Street and Dean Street	18 Mo. SOL 3/13/2016	Precinct: 77
Date/Time CV Reported Tue, 09/16/2014 12:07 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/16/2014 12:07 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Feeley	02768	944550	077 PCT
2. POM Gerard Fenton	06680	951725	077 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephane Beraud	27512	950070	077 PCT
2. POM Jeremiah Ali	01195	944314	077 PCT
3. SGT John Coyle	04379	934694	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Feeley	Abuse: PO Brian Feeley searched the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Gerard Fenton	Abuse: PO Gerard Fenton threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . POM Gerard Fenton	Discourtesy: PO Gerard Fenton spoke rudely to § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 13, 2014, at about 9:45 p.m., § 87(2)(b) (encl. 6) was pulled over in his vehicle at the intersection of New York Avenue between Pacific Street and Dean Street in Brooklyn by two uniformed officers, identified by the investigation as PO Brian Feeley and PO Stephane Beraud, both assigned to the 77th Precinct, for failure to signal. § 87(2)(b) provided his license upon request, and after it was checked, the officers told him that he was under arrest for § 87(2)(b). § 87(2)(b) was asked out of his vehicle, and PO Feeley searched him pursuant to arrest. PO Feeley then allegedly searched § 87(2)(b)'s vehicle, including by moving the car mats, looking under the front seats, and looking under the back seats (**Allegation A**). According to § 87(2)(b) PO Feeley discovered an ashtray holding "two seeds" of marijuana and told § 87(2)(b) "You're in trouble." PO Feeley and PO Beraud requested additional officers to the location because their vehicle was not equipped with a cage. The investigation determined that PO Gerard Fenton and Sgt. John Coyle, both of the 77th Precinct, responded. § 87(2)(b) stated that PO Fenton and PO Feeley transported § 87(2)(b) to the 77th Precinct stationhouse in PO Fenton's vehicle. During the ride, § 87(2)(b) complained that he was uncomfortable in the back of the car. PO Fenton allegedly told § 87(2)(b) "Stop moving before I go back there and fuck you up" (**Allegations B and C**).

According to PO Feeley (encl. 9) and PO Beraud (encl. 11), upon approaching § 87(2)(b)'s vehicle, a ceramic bowl filled with a small amount of marijuana could be observed from outside the vehicle in plain view on the floor in front of the front passenger seat. § 87(2)(b) was released from the stationhouse with two summonses, one for § 87(2)(b) (encl. 8A) and one for § 87(2)(b) (encl. 8B).

Mediation and Civil and Criminal Histories

- This case was not eligible for mediation § 87(2)(b) [REDACTED].
- A Notice of Claim was requested for this case on June 23, 2015. The results of the query will be added to the case file when received (encl. 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Civilian and Officer Histories

- § 87(2)(b) filed one previous CCRB complaint, § 87(2)(b) [REDACTED].
- PO Feeley has been a member of the NYPD for seven years. He has been a subject officer in four CCRB cases, and six allegations have been made against him. None of the allegations were substantiated, § 87(2)(g) [REDACTED] (encl. 3).
- PO Fenton has been a member of the NYPD for three years. He has been a subject officer in four CCRB cases, and five allegations have been made against him. None of the allegations were substantiated, § 87(2)(g) [REDACTED] (encl. 4).

Conclusion

Allegation Not Pleaded

§ 87(2)(g)

Identification of Subject Officers

§ 87(2)(b) stated that he was stopped by a black male dressed in uniform, and a white male dressed in uniform. He alleged the white male officer searched his vehicle. Upon release, § 87(2)(b) was given two summonses, and they were issued by PO Brian Feeley. PO Feeley, when interviewed, indicated that he was partnered with PO Beraud, a black male. § 87(2)(g) § 87(2)(b) stated that he was transported to the stationhouse in a separate officer's vehicle, and the vehicle operator, whom he described as a black or Hispanic man, used profanity and threatened him with force during the ride. An event report (encl. 16) indicated that Sgt. Coyle, a white man, and PO Fenton, a black man, were the only additional officers to arrive on the scene. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Brian Feeley searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged (encl. 6) that after he was asked to step out of his vehicle, PO Feeley searched his car without permission. PO Feeley allegedly moved the car mats, looked under the front seats, and looked under the back seats. § 87(2)(b) said PO Feeley found “two seeds” of marijuana inside his car and thereafter charged him with § 87(2)(b).

There were no identified civilian witnesses to the incident.

PO Feeley stated (encl. 9) that while standing at the passenger side of § 87(2)(b)'s vehicle, he smelled an odor of marijuana, and he shined his flashlight into § 87(2)(b)'s vehicle when he observed a green bowl sitting on the floor in front of the passenger seat, which contained a green, leafy substance and a half burned, hand-rolled cigarette. PO Feeley said he asked § 87(2)(b) if it was marijuana, and § 87(2)(b) responded, “Oh, here we go again.” PO Feeley said he leaned inside § 87(2)(b)'s vehicle and grabbed the green substance and cigarette, which was later field tested positive as marijuana. PO Feeley denied searching anywhere else inside the vehicle. PO Feeley provided a consistent narrative of this on the summons he issued to § 87(2)(b) (encl. 8A), and he indicated in his memo book that he summonsed § 87(2)(b) for marijuana possession (encl. 7).

PO Beraud stated (encl. 11) that he approached § 87(2)(b) at the driver's side and PO Feeley approached at the passenger side. While speaking with § 87(2)(b) PO Beraud smelled marijuana inside the car. Although he thought § 87(2)(b) was possibly under the influence of marijuana, he did not see marijuana inside the car. After accepting § 87(2)(b)'s vehicle paperwork and returning to the police car. PO Feeley discussed his observation of marijuana with PO Beraud. PO Beraud recalled that the bowl was retrieved; that it was made of clay and about six inches wide; but he could not recall who retrieved the bowl. PO Beraud stated that if § 87(2)(b)

§ 87(2)(b)'s vehicle was searched, the extent of it would have been an officer looking at the plain view and lungeable areas around the seats.

§ 87(2)(g)

Officers may search the lungeable area of a vehicle if there is reason to believe that the vehicle contains evidence related to a crime. People v. Gant, 556 U.S. 332 (2009). (encl. 1.)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A be closed as exonerated.**

Allegation B – Abuse of Authority: PO Gerard Fenton threatened § 87(2)(b) with the use of force.

Allegation C – Discourtesy: PO Gerard Fenton spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged (encl. 6) that the officer who transported him to the 77th Precinct stationhouse, identified by the investigation as PO Fenton, allegedly told § 87(2)(b) “Stop moving before I go back there and fuck you up.”

PO Fenton did not recall the incident (encl. 13), and PO Feeley (encl. 9), the other officer alleged to have been in the police car during the transport, thought he did not ride back to the stationhouse with § 87(2)(b).

§ 87(2)(g)

Therefore it is recommended that **Allegations B and C be closed as unsubstantiated.**

§ 87(2)(g), § 87(4-b)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date